

**IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF NEW YORK**

HAN KIM, <i>et al.</i> , Plaintiffs,	)	
	)	
<i>v.</i>	)	
	)	
THE DEMOCRATIC PEOPLE'S	)	
REPUBLIC OF KOREA, a.k.a. NORTH	)	
KOREA, Defendant	)	
	)	
~~~~~	)	
	)	
IN RE CENTRAL BANK OF THE	)	
ISLAMIC REPUBLIC OF IRAN, et al.	)	
	)	Case Nos. 25-MC-527-MMG
~~~~~	)	26-MC-033-MMG
	)	26-MC-094-MMG
RUTH CALDERON-CARDONA, et al.,	)	
Plaintiffs,	)	
	)	
<i>v.</i>	)	
	)	
THE DEMOCRATIC PEOPLE'S	)	
REPUBLIC OF KOREA, et al.,	)	
Defendants	)	
	)	
&	)	
	)	
ARBITRUM DAO,	)	
	)	
Garnishee (as to all cases)	)	
	)	

RESTRAINING NOTICE

To: Arbitrum DAO

GREETING:

WHEREAS, in an action in the United States District Court for the District of Columbia between Han Kim and Yong Kim, Plaintiffs, and Democratic People's Republic of Korea, Defendant, a judgment was entered therein on April 9, 2015, in favor of Han Kim and Yong Kim, the Judgment Creditors, and against Democratic People's Republic of Korea, the Judgment Debtor, for the sum of \$15,000,000 (\$15 million) in favor of Han Kim and \$15,000,000 (\$15 million) in favor of Yong Kim, and an additional \$300,000,000 (\$300 million) collectively to Han Kim and Yong Kim, and

WHEREAS, that judgment has been registered in the United States District Court for the Southern District of New York, *see* Dkt. 1, AO-451 Registration of Judgment, *Kim v. Democratic People's Republic of Korea*, No. 25-MC-527 (S.D.N.Y.), and

WHEREAS, the sum of the *Kim* judgment-creditors' compensatory and punitive damages is now due and owing with interest accruing from April 9, 2015, and

WHEREAS, in an action in the United States District Court for the District of Columbia between Chaim Kaplan, et al., and the Democratic People's Republic of Korea, et al., a judgment was entered therein on September 30, 2016, in favor of Chaim Kaplan, et al., the Judgment Creditors, and against the Democratic People's Republic of Korea, et al., Judgment Debtors, with damages in favor of Judgment-Creditors for \$38,161,966.67 in compensatory damages and \$131,277,165.34 in punitive damages, and

WHEREAS, that judgment has been registered in the United States District Court for the Southern District of New York, *see* Dkt. 1, AO-451 Registration of Judgment, *In re: Central Bank of the Islamic Republic of Iran, et al.*, No. 26-MC-33 (S.D.N.Y.), and

WHEREAS, the sum of the *Kaplan* judgment-creditors' compensatory and punitive damages is now due and owing with interest accruing from September 30, 2016, and

WHEREAS, in an action in the United States District Court for the District of Puerto Rico between Ruth Calderon-Cardona, et al., Plaintiffs, and Democratic People's Republic of Korea, et al., Defendants, a judgment was entered therein on August 5, 2010, in favor of Ruth Calderon-Cardona et al., Judgment Creditors, and against Democratic People's Republic of Korea et al., the Judgment Debtors, for the sum of \$78,000,000, with an additional \$300,000,000 in punitive damages to Judgment-Creditors, and

WHEREAS, that judgment has been registered in the United States District Court for the Southern District of New York, *see* Dkt. 1, AO-451 Registration of Judgment, *Calderon-Cardona et al. v. Democratic People's Republic of Korea et al.*, No. 26-MC-94 (S.D.N.Y.), and

WHEREAS, the sum of the *Calderon-Cardona* judgment-creditors' compensatory and punitive damages is now due and owing with interest accruing from August 5, 2010, and

WHEREAS, it appears that you are in possession or custody of property in which

[illegible]

TAKE NOTICE that pursuant to CPLR §5222(b), set forth fully below, you are hereby forbidden to make or suffer any sale, assignment, transfer or interference with any property in which the Democratic People's Republic of Korea, a/k/a North Korea, has or is known or believed to have an interest, including but not limited to property held through any agency, instrumentality, controlled person, or controlled entity of the Democratic People's Republic of Korea, including, but not limited to, APT-38 and the Lazarus Group, except upon direction of the sheriff or pursuant to an order of the court.

TAKE FURTHER NOTICE that this Restraining Notice also covers all property in which the above-named Judgment Debtor has an interest hereafter coming into your possession or custody, and all debts hereafter coming due from you to the Judgment Debtor.

CIVIL PRACTICE LAW AND RULES §5222(b)

Effect of restraint; prohibition of transfer; duration: A judgment debtor or obligor served with a restraining notice is forbidden to make or suffer any sale, assignment, transfer or interference with any property in which he or she has an interest, except as set forth in subdivisions (h) and (i) of this section, and except upon direction of the sheriff or pursuant to an order of the court, until the judgment or order is satisfied or vacated. A restraining notice served upon a person other than the judgment debtor or obligor is effective only if, at the time of service, he or she owes a debt to the judgment debtor or obligor or he or she is in the possession or custody of property in which he or she knows or has reason to believe the judgment debtor or obligor has an interest, or if the judgment creditor or support collection unit has stated in the notice that a specified debt is owed by the person served to the judgment debtor or obligor or that the judgment debtor or obligor has an interest in specified property in the possession or custody of the person served. All property in which the judgment debtor or obligor is known or believed to have an interest then in and thereafter coming into the possession or custody of such a person, including any specified in the notice, and all debts of such a person, including any specified in the notice, then due and thereafter coming due to the judgment debtor or obligor, shall be subject to the notice, except as set forth in subdivisions (h) and (i) of this section. Such a person is forbidden to make or suffer any sale, assignment or transfer of, or any interference with, any such property, or pay over or otherwise dispose of any such debt, to any person other than the sheriff or the support collection unit, except as set forth in subdivisions (h) and (i) of this section, except upon direction of the sheriff or pursuant to an order of the court, until the expiration of one year after the notice is served upon him or her, or until the judgment or order is satisfied or vacated, whichever event first occurs. A judgment creditor or support collection unit which has specified personal property or debt in a restraining notice shall be liable to the owner of the property or the person to whom the debt is owed, if other than the judgment debtor or obligor, for any damages sustained by reason of the restraint. If a garnishee served with a restraining notice withholds the payment of money belonging or owed to the judgment debtor or obligor in an amount equal to twice the amount due on the judgment or order, the restraining notice is not effective as to other property or money.

TAKE FURTHER NOTICE, that disobedience of this Restraining Notice is punishable as a contempt of court.

Dated: April 30, 2026

/s/ Charles Gerstein

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